

Court No. - 9

Case :- WRIT - C No. - 9750 of 2021

Petitioner :- Prayag Private I.T.I.

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Vijay Bahadur Yadav, Arun Kumar, Pawan Kumar

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Sanjay Yadav, Acting Chief Justice

Hon'ble Prakash Padia, J.

The matter is taken up through Video Conferencing.

Petitioner by way of present petition seeks following directions:-

"A. Issue a writ order or direction in the nature of certiorari quashing the recovery certificate dated 06.11.2019 of amount of Rs. 3,80,000/- + (recovery charges) + interest (contain in annexure no.6) to the writ petition.

B. Issue a writ order or direction in the nature of mandamus directing the respondents to connect the supply of electricity of the institute of petitioner and electricity supply be made at once.

C. Issue a writ order or direction in the nature of mandamus directing the respondents to receive the correct due amount in easy installments. Amount of Surcharge also be exempted.

D. Issue a writ order or direction in the nature of mandamus directing the respondents not harass the petitioner."

Admittedly, the petitioner has a remedy for redressal of his grievance under the Uttar Pradesh Electricity Supply Code, 2005 (As amended on 10th August, 2018).

In view whereof, we are not inclined to cause any indulgence. The petitioner is set at liberty to avail the remedy under the Code, 2005.

Petition stands disposed of finally in above terms.

Order Date :- 19.4.2021

N Tiwari

(Prakash Padia, J.) (Sanjay Yadav, A.C.J.)